

SENATE BILL 735

By Pody

AN ACT to amend Tennessee Code Annotated, Title 29, Chapter 16 and Section 54-21-107, relative to just compensation for removal or acquisition of outdoor advertising devices.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 54-21-107, is amended by adding the following as new subsections (b) and (c) and redesignating existing subsections (b) and (c) and subsequent subsections accordingly:

(b) The commissioner is authorized to acquire by purchase, gift, or condemnation all outdoor advertising devices and any property rights pertaining to such devices when such devices are required to be removed under § 54-21-105. Just compensation must be paid for the acquisition or for the removal of any outdoor advertising device lawfully erected as provided in 23 U.S.C. § 131 that is required to be removed for any reason, including under § 54-21-105. Notwithstanding another law to the contrary, a lawfully erected outdoor advertising device adversely affected by condemnation is entitled to just compensation in the same manner as a structure or improvement under § 29-16-203. The use of amortization for whatever period does not constitute just compensation.

(c) Notwithstanding this section or another law to the contrary, if a political subdivision or other governmental agency requires the removal of an outdoor advertising device lawfully erected without an option to relocate the outdoor advertising device to a similarly situated location, then just compensation must be paid to the owner of the outdoor advertising device for the cost of removal plus the fair market value of the

outdoor advertising device removed. The use of amortization for any period does not constitute just compensation under this subsection (c).

SECTION 2. Tennessee Code Annotated, Section 54-21-107, is amended by deleting the language "subdivisions (b)(1)(A) and (B)" wherever it appears and substituting instead "subdivisions (d)(1)(A) and (B)".

SECTION 3. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.